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Case Number: 24STCV17735 Hearing Date: August 5, 2026 Dept: 408

Plaintiff Shiloh Parker's Demurrer

to Defendant Jonathan Everett Mills' Answer to Plaintiff's Fourth

Amended Complaint is OVERRULED.

I.

BACKGROUND

On July 16, 2024, Plaintiff Shiloh Parker ("Plaintiff") filed a complaint against Defendants Jonathan Everett Mills ("Mills") and Durden and Mills, P.C. ("Durden") alleging causes of action for:

1.

Civil Extortion;

2.

Civil Conspiracy;

3.

Abuse of Process; and

4.

Unfair Business Practice.

On August 5, 2024, Plaintiff filed a First Amended Complaint ("FAC") against Defendants Mills, Durden, Robert John Lamb ("Lamb"), Daniel Freeland ("Freeland"), and Enrique Rivera ("Rivera") alleging causes of action for:

1.

Civil Extortion;

2.

Abuse of Process;

3.

Malicious Prosecution;

4.

Intentional Infliction of Emotional Distress;

5.

Negligent Infliction of Emotional Distress; and

6.

Unfair Business Practice.

On February 27, 2024,

Plaintiff filed a Second Amended Complaint ("SAC").

On June 12, 2025, pursuant to an oral request by Plaintiff, the court dismissed Freeland and Rivera from Plaintiff's SAC without prejudice.

On July 28, 2025, Plaintiff filed a Third Amended Complaint ("TAC") alleging causes of action for:

1.

Civil Extortion;

2.

Abuse of Process;

3.

Malicious Prosecution;

4.

Unfair Business Practice; and

5.

Slander Per Se.

On October 13, 2025, the court denied in part Mills and Durden's Motion to Quash Service of Summons and Complaint as to Mills and granted in part as to Durden as it had not been served with Plaintiff's TAC; denied as moot Plaintiff's Motion to Continue Specially Appearing Defendants' Motion to Quash Service of Summons; and denied as moot Plaintiff's Motion for Leave to Conduct Jurisdictional Discovery as to Specially Appearing Defendants.

On January 20, 2026, the court granted Plaintiff's Motion for Leave to File a Fourth Amended Complaint, overruled Mills' Demurrer, and denied the Motion to Strike to Plaintiff's TAC as moot.

On January 20, 2026, Plaintiff filed a Fourth Amended Complaint ("4AC") against Mills and Lamb ("Defendants") alleging causes of action for:

1.
Civil Extortion;
2.
Abuse of Process; and
3.
Defamation/Slander Per Se.

On February 19, 2026, Plaintiff filed this Motion for Service Costs and Fees. On March 26, 2026, Mills filed an opposition. On April 1, 2026, Plaintiff filed a reply.

On March 5, 2026, the court denied Plaintiff's Motion to Compel Further Responses to Form Interrogatories, Set One; denied in part and granted in part Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set One; denied Mills' Motions for Protective Order; and denied Plaintiff's Motion for Sanctions.

On April 9, 2026, the court overruled Mills' Demurrer and denied the Motion to Strike as to Plaintiff's 4AC.

On April 17, 2026, Mills filed an answer to Plaintiff's 4AC.

On April 23, 2026, Plaintiff filed this Demurrer to Mill's answer to Plaintiff's 4AC. On June 5, 2026, Mills filed an opposition. On June 12, 2026, Plaintiff filed a reply.

II.

LEGAL STANDARD

"A demurrer tests the pleadings alone and not the evidence or other extrinsic matters." (Hahn. v. Mirda (2007) 147 Cal.App.4th 740, 747.) It is sustained only where the defects appear on the face of the pleading or are judicially noticeable. (Code Civ. Proc., § 430.30.) No extrinsic evidence may be considered. (See Ion Equip. Corp. v. Nelson (1980) 110 Cal.App.3d 868, 881.)

"A party against whom an answer has been filed may object, by demurrer as provided in Section 430.30, to the answer upon any one or more of the following grounds: (a) The answer does not state facts sufficient to constitute a defense; (b) The answer is uncertain; or (c) Where the answer pleads a contract, it cannot be ascertained from the answer whether the contract is written or oral." (Code Civ. Proc., § 430.20.)

The same pleading of "ultimate facts" rather than evidentiary matter or legal conclusions is required as in pleading the complaint. The effect of a general denial in an answer is to put in issue the material allegations of the complaint. (Advantec Group, Inc. v. Edwin's Plumbing Co., Inc. (2007) 153 Cal.App.4th 621, 627.)

In addition to denials, the answer should contain whatever affirmative defenses or objections to the complaint that defendant may have, and that would otherwise not be in issue under a simple denial. Such affirmative defenses or objections are "new matter" and must be specially pleaded. (Walsh v. West Valley Mission Community College Dist. (1998) 66 Cal.App.4th 1532, 1546; Code Civ. Proc. § 431.30, subd. (b).) Also, the answer must aver facts as carefully and with as much detail as the facts which constitute the cause of action and which are alleged in the complaint. (FPI Development, Inc. v. Nakashimi (1991) 231 Cal.App.3d 367, 384.) The various affirmative defenses must be separately stated and must refer to the

causes of action to which they relate "in a manner by which they may be intelligently distinguished." (Code Civ. Proc., §431.30, subd. (g).) In sum, California is a fact pleading jurisdiction such that merely putting an opposing party on notice is not sufficient. (Bach v. County of Butte (1983) 147 Cal.App.3d 554, 561; Diodes, Inc. v. Franzen (1968) 260 Cal.App.2d 244, 250.)

The critical inquiry when a plaintiff demurs to an answer is whether the answer raises a defense to plaintiff's stated cause of action. (Timberidge Enterprises, Inc. v. City of Santa Rosa (1978) 86 Cal.App.3d 873, 879-880.) Demurrers to a complaint or an answer generally follow the same rules; however, there are some important differences. (South Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 733.)

First, for a demurrer to an answer, the defect in question need not appear on the face of the answer. (South Shore Land Co., supra, 226 Cal.App.2d at p. 733.) "The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer. [Citations.] This requirement, however, does not mean that the allegations of the complaint, if denied, are to be taken as true, the rule being that the demurrer to the answer admits all issuable facts pleaded therein and eliminates all allegations of the complaint denied by the answer. [Citations.]" (Ibid.)

Second, for purposes of a demurrer to an answer, each defense in the answer must be considered separately without regard to any other defense. (Id., at 733-734.) Thus, a separately stated defense that is sufficient in form and substance when viewed in isolation does not become insufficient when, on looking at the answer as a whole, that defense appears inconsistent with other parts of the answer. (Ibid.)

Third, because a defendant is entitled to plead inconsistent defenses, where one separate answer denies all of the allegations of the plaintiff's complaint, the plaintiff is not excused from making proof of the material facts because of admissions of some or all of them found in other and separate answers of the defendant. (Id., at 734.)

III.

DISCUSSION

Plaintiff demurs to the fifteen affirmative defenses asserted in Mills' answer to Plaintiff's 4AC pursuant to Code of Civil Procedure section 430.20, subdivision (a), on the grounds that Mills fails to state sufficient facts to constitute such affirmative defenses and fails to refer to the causes of action Mills intended to answer.

A.

Request for Judicial
Notice

Plaintiff's request for judicial notice is granted. "A court may properly take judicial notice of its own records. (Evid. Code, § 452, subd. (e).)" (Garcia v. Sterling (1985) 176 Cal.App.3d 17, 21.)

B. Merits

Plaintiff argues that Mills fails to identify which cause of action each of the fifteen purported defenses is answering. (Demurrer, at p. 3.) Plaintiff also argues that Mills failed to allege any facts in support of the fifteen purported defenses. (Id., at pp. 3-4.) Plaintiff further argues that the fourth, fifth, sixth, eleventh, and thirteenth defenses appear to deny the elements of Plaintiff's causes of action and are not affirmative defenses as a matter of law. (Id., at pp. 4-5.) Lastly, Plaintiff argues that the first, fifth, tenth, and eleventh defenses are moot as the court issued a finding rejecting them. (Id., at pp. 6-7.)

The court finds that the demurrer lacks merit. Plaintiff relies on conclusory, boilerplate language to show that Mills failed to plead enough facts to articulate an affirmative defense. Mills' affirmative defenses are pled sufficiently to put Plaintiff on notice and tailor discovery to the defenses. In the court's view, this is a clear attempt to delay the speedy resolution of this case. Mills need not plead specific facts to support each defense; it need only plead enough facts to put Plaintiff on notice, which it has done here. Any defense that is moot would not require further litigation and would not be subject to a demurrer.

Accordingly, the demurrer is overruled.

IV.

CONCLUSION

Plaintiff Shiloh Parker's Demurrer to Defendant Jonathan Everett Mills'
Answer to Plaintiff's Fourth Amended Complaint is OVERRULED.